

File No.: EXP202311588

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 25, 2023. The complaint is directed against the entity MÁRMOLES Y GRANITOS MEJIAS, S. L. with NIF B76361542 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) the respondent is responsible for a video surveillance system with cameras oriented towards the public road, without having prior administrative authorization for it.”

It includes images of the façade of the establishment, where a video surveillance camera and a simple notice on a handwritten sign can be seen (Annex I attached frames).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on September 12, 2023, according to the certificate in the file.

Once the notification was made, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an additional attempt at paper notification was made for informational purposes, in accordance with the provisions of Article 42 of the LPACAP - by postal mail - which was returned on October 4, 2023, due to absence of delivery on September 22 and 25, 2023, according to the delivery proof in the file.

THIRD: On October 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: Upon consulting the database of this Agency, there is a prior sanction against the referenced entity in the framework of procedure PS/00457/2022.

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TO IMPOSE on the entity MÁRMOLES Y GRANITOS MEJIAS, S. L., with NIF B76361542, for an infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 a) and b) of the GDPR, a fine of €600 (€300 + €300).

FIFTH: On June 6, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR and Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: Upon consulting the database of this AEPD, it is recorded that the Official Postal Service certifies that in the double attempt of notification at the indicated address, it resulted as on the dates 27/06/24 and 01/07/24.

After the double attempt of notification via postal mail, the aforementioned Agreement was published in the B.O.E on 07/08/24 (type of act: Opening Agreement).

SEVENTH: On 15/07/24, the instructor of the procedure agreed to request collaboration from the State Security Forces and Corps to verify the operability of the system at the scene, as well as whether the video-surveilled area was properly informed.

EIGHTH: On 05/08/24, a written response was received at this AEPD from the General Directorate of the Civil Guard (Command of Las Palmas).

"By means of this, we inform you that having presented several times at the location, the instructing agent at the company Mármoles y Granitos Mejías S.L. observes that the premises are always closed, although the person responsible for said company is B.B.B. (**NIF.1), (...) and currently, according to neighborhood sources, has moved to live in ***LOCALIDAD.1, without knowing his exact address. It is confirmed that there is indeed a video surveillance camera that is focused on the exterior sidewalk of said premises and without having an informative sign in a visible area indicating that it is a "video surveillance area."

Since it has not been possible to see the owner, the undersigned agent does not know exactly the space that is captured and whether it is public space or private property of a third party."

NINTH: On 09/09/24, a was issued proposing a sanction of €1000, having been verified after the presence at the scene of the acting force, the presence of an exterior camera oriented towards the public road, without having an informative sign in legal form, thus confirming the infringement of Article 13 of the GDPR.

TENTH: Upon consulting the information system of this Agency, a new notification was made at the address provided by the AET (Tax Agency) after the inquiries made by the FFCC at the scene.

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It is recorded that on 28/08/24, the tax domicile of the entity Mármoles y Granitos Mejías S.L. was provided.

(...)

The aforementioned was notified through the Official Postal Service at the provided address, and ultimately, as any attempt at notification was unsuccessful, it was published in the B.O.E (Type of act: Proposal for Resolution) on 05/12/2024 within the framework of File EXP202311588.

From the actions taken in this procedure and the documentation in the file, the following have been established:

PROVEN FACTS

First. The facts arise from the complaint dated 25/07/23, through which the irregular situation in the video surveillance system associated with the entity—Mármoles y Granitos Mejías, S.L.—is once again reported to this Agency.

Second. It is established that B.B.B. (**NIF.1) is the main responsible party, who has installed a video surveillance camera system on the façade of the establishment Mármoles y Granitos Mejías, S.L.

Third. It is established that the mentioned entity does not have an informative sign that complies with current legislation.

This is evidenced in the Official Letter sent by the General Directorate of the Civil Guard (Report date 01/08/24).

"That it indeed has a video surveillance camera that is focused on the exterior sidewalk of said premises and without having an informative sign in a visible area indicating that it is a 'video surveillance area.'"

Fourth. A precedent associated with the entity Mármoles y Granitos Mejías, S.L. is established within the framework of PS/00457/2022, where it was sanctioned and ordered to regularize the installed video surveillance system.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the President of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, the complaint dated 25/07/23 is examined, through which the presence of video surveillance cameras with alleged orientation towards public space and poorly marked informational signage is reported.

Article 5.1 c) GDPR provides as follows: Personal data shall be: "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the required informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable. In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Furthermore, images of public space cannot be obtained with such devices, as this is the exclusive competence of the State Security Forces and Corps (e.g., LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places).

It is worth noting that even in the case of a "dummy" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals may not install devices for obtaining images of public space and/or the transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the area of third parties who may feel intimidated by them, as it affects their area of free transit.

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III

As a result of the deployment of the State Security Forces and Corps to the scene, it has been confirmed that at least the informational signage does not comply with current legality, with the entity in question having a camera that could affect public space and/or third parties without justified cause, but whose operability has not been proven.

Regarding the of the camera, the acting force confirms the presence of a camera oriented outward "not knowing exactly the space it captures" upon observing that the "establishment is always closed."

Article 77, section 5 of Law 39/2015 (October 1) states:

"The documents formalized by officials recognized as authorities, which, observing the corresponding legal requirements, record the facts verified by them shall serve as proof of these facts unless proven otherwise."

The individuals responsible for the installation of such devices are responsible for ensuring that it

complies with current legality, which includes indicating on the informational sign the responsible party for data processing, an effective address to which inquiries can be directed, and the manner of exercising rights.

Article 22, section 4 of the LOPDGDD (LO 3/2018) states:

“The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informational device.”

However, since the of the system has not been proven, none of the alleged violations could be substantiated, since if the camera is deterrent, false, or deactivated, it would not be necessary to place an informational sign on the exterior facade.

For various reasons, many establishments have been forced to cease their activities, although it is not unusual for them not to dismantle the camera system, sometimes to prevent illegal occupation of the premises or acts of vandalism or looting, which does not imply, as stated, data processing.

IV

The principle of the presumption of innocence prevents attributing an administrative violation when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer. Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which one can defend their own positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails:

“that the sanction is based on acts or evidentiary means that incriminate the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal.”

The presumption of innocence governs without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TCO 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the play of evidence and a contradictory procedure in which one can defend their own positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCO Auto 3-12-81).

V

In accordance with the above, despite the extensive investigations carried out, it has not been possible to prove that the system is as access to the interior of the premises could not be obtained, nor could contact be made with the responsible party, therefore it is appropriate to order the filing of the current procedure.

Notwithstanding the above, in the event of new evidence being provided, new proceedings could be ordered to prove the legality of the system, and it would be advisable to request cooperation from the local Security Forces and Corps, due to their proximity to the scene, who possess the necessary experience to act in this regard.

Therefore, in accordance with the applicable legislation, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the procedure regarding the violation of Article 5.1 c) and 13 of the GDPR, as the alleged violation(s) have not been substantiated.

SECOND: TO NOTIFY this resolution to Empresa MÁRMOL Y GRANITOS MEJIAS, S. L.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Data Protection Agency within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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